

FORM NO. C.A - 5

[Refer rule 7]

Form of Appeal or Application to Appellate Tribunal under sub-section (2) section 129A or sub-section (4) of section 129D of the Customs Act, 1962.

In the Customs, Excise and Service Tax Appellate Tribunal.

Appeal No..... of 20.....

..... Appellant/ Applicant

Vs

..... Respondent

1. Port/ Location Code***IEC******PAN or UID*******Port/Location Code 2*****Port/Location Code 3*, etc****E-Mail Address****Phone No.****Fax No.**

2. The designation and address of the Appellant Commissionerate (if the appeal is filed on the basis of the authorisation given by the Committee of Commissioners under sub-section (2) of section 129A of the Act. A copy of the authorisation shall be enclosed).

3. The designation and address of the Applicant (if the application is filed on the basis of an order of the Committee of Chief Commissioners under sub-section (1) of section 129D of the Act. A copy of the order shall be enclosed).

4. Name and address of the respondent.

5. Number and date of the order against which the appeal or application is filed.

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Dated

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6. Designation and address of the officer passing the decision or order in respect of which this appeal or application is being made.

7. State or Union territory and the Commissionerate in which the decision or order was made.

8. Date of receipt of the order referred to in (5) above by the Commissioner of Customs or by the jurisdictional Chief Commissioner of Customs, as the case may be.
9. Date on which order under sub-section (1) of section 129D of the Act, has been passed by the Committee of Chief Commissioners.
10. Date of receipt of the order referred to in (9) above by the applicant.
11. Whether the decision or order challenged involves any question having a relation to the rate of duty of customs or to the value of goods for purpose of assessment.
12. Description and classification of goods.
13. Period of dispute.
14. (i) Amount of duty demand dropped or reduced for the period of dispute.
(ii) Amount of interest demand dropped or reduced for the period of dispute.
(iii) Amount of refund sanctioned or allowed for the period of dispute.
(iv) Whether no or less fine imposed?
(v) Whether no or less penalty imposed?
(vi) Market value of seized goods.
15. Whether any application for stay of the operation of the order challenged has been made?
16. Subject matter of dispute in order of priority (please choose two items from the list below either under the head 'IMPORT' or 'EXPORT' or 'GENERAL' , depending upon the nature of the case).

IMPORT		EXPORT		GENERAL	
i) Classification Chapters, ii) Valuation – GVC /SVB or Others. iii) Application of Exemption Notification No., iv) Anti-dumping duty. v) Safeguard duty, vi) Project imports, vii) Baggage viii) Courier, ix) Imports under Export Promotion Scheme, x) Seizure cases xi) Refunds, xii) NTR (Non Tariff Restrictions like import licence, Phyto Sanitary requirements etc.), xiii) Others.		i) Classification-Srl. Nos.of Export Schedule, ii) Valuation, iii) Drawback, iv) Export under any Export Promotion Scheme (other than drawback), v) Non-Tariff restrictions, vi) Others		i) Custom House Agents Licencing Regulations, 2004, ii) MOT Charges, iii) Others	
Priority 1	Priority 2	Priority 1	Priority 2	Priority 1	Priority 2

17. If the appeal is against an Order-in-Appeal of Commissioner (Appeals), the number of Orders-in-Original covered by the said Order-in-Appeal.

18. Whether the respondent has also filed an appeal against the order against which this appeal or application is made?

19. If answer to serial number 18 above is 'yes', furnish the details of appeal.

20. Whether the appellant or applicant wishes to be heard in person?

21. Reliefs claimed in appeal/application.

Statement of facts

Grounds of application

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In the Customs, Excise and Service Tax Appellate Tribunal.

Appeal No..... of 20.....

..... Appellant/ Applicant

Vs

..... Respondent

1. Port/ Location Code*

IEC**

PAN or UID***

Port/Location Code 2*

Port/Location Code 3*, etc

E-Mail Address

Phone No.

Fax No.

2. The designation and address of the Appellant Commissionerate (if the appeal is filed on the basis of the authorisation given by the Committee of Commissioners under sub-section (2) of section 129A of the Act. A copy of the authorisation shall be enclosed).

3. The designation and address of the Applicant (if the application is filed on the basis of an order of the Committee of Chief Commissioners under sub-section (1) of section 129D of the Act. A copy of the order shall be enclosed).

4. Name and address of the respondent.

5. Number and date of the order against which the appeal or application is filed.

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8. Date of receipt of the order referred to in (5) above by the Commissioner of Customs or by the jurisdictional Chief Commissioner of Customs, as the case may be.

9. Date on which order under sub-section (1) of section 129D of the Act, has been passed by the Committee of Chief Commissioners.

10. Date of receipt of the order referred to in (9) above by the applicant.

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(iv) Whether no or less fine imposed?

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(vi) Market value of seized goods.

15. Whether any application for stay of the operation of the order challenged has been made?

16. Subject matter of dispute in order of priority (please choose two items from the list below either under the head 'IMPORT' or 'EXPORT' or 'GENERAL', depending upon the nature of the case).

IMPORT		EXPORT		GENERAL	
i) <i>Classification Chapters,</i> ii) <i>Valuation – GVC /SVB or Others.</i> iii) <i>Application of Exemption Notification No.,</i> iv) <i>Anti-dumping duty.</i> v) <i>Safeguard duty,</i> vi) <i>Project imports,</i> vii) <i>Baggage</i> viii) <i>Courier,</i> ix) <i>Imports under Export Promotion Scheme,</i> x) <i>Seizure cases</i> xi) <i>Refunds,</i> xii) <i>NTR (Non Tariff Restrictions like import licence, Phyto Sanitary requirements etc.),</i> xiii) <i>Others.</i>		i) <i>Classification-Srl. Nos.of Export Schedule,</i> ii) <i>Valuation,</i> iii) <i>Drawback,</i> iv) <i>Export under any Export Promotion Scheme (other than drawback),</i> v) <i>Non-Tariff restrictions,</i> vi) <i>Others</i>		i) <i>Custom House Agents Licencing Regulations, 2004,</i> ii) <i>MOT Charges,</i> iii) <i>Others</i>	
Priority 1	Priority 2	Priority 1	Priority 2	Priority 1	Priority 2

17. If the appeal is against an Order-in-Appeal of Commissioner (Appeals), the number of Orders-in-Original covered by the said Order-in-Appeal.

18. Whether the respondent has also filed an appeal against the order against which this appeal or application is made?

19. If answer to serial number 18 above is 'yes', furnish the details of appeal.

20. Whether the appellant or applicant wishes to be heard in person?

21. Reliefs claimed in appeal/application.

Statement of facts

Grounds of application

- (i)
- (ii)
- (iii) etc.

Signature of the authorised Representative
of appellant or applicant, if any

Signature of the appellant or applicant

Note : The appeal or application including the statements of facts and the grounds of appeal or application shall be filed in quadruplicate accompanied by an equal number of copies of the decision or order (one at least of which shall be a certified copy) of the Commissioner of Customs/ Appeals and a copy of the order of the Committee of Commissioners of Customs under sub-section (2) of section 129A or a copy of the order of the Committee of Chief Commissioners of Customs under sub-section (1) of section 129D.

* Location Codes of all customs stations from where imports/exports have taken place to be furnished in respect of the respondent. Location Codes for all the sea ports, airports, ICD's, Land Customs stations etc, are available on the website www.icegate.gov.in [ICEGATE website – downloads-ICEGATE guidelines – Code List- Location Code List]

** Importer Exporter Code (IEC), if any, in respect of the respondent, assigned by the Directorate General of Foreign Trade, to be mandatorily furnished

*** To be furnished if the respondent does not have IEC. Unique Identification (UID) number to be furnished where Permanent Account Number (PAN) is not available.”

F.No.390/Misc/46/2011-JC

(Sunil Kumar Sinha)
Director to the Government of India

Note: The principal rules were published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i) vide notification No. 212/82-Customs, dated 10th September, 1982 (G.S.R 564 (E) dated 10.9.82) and last amended by notification No. 62/99-CUSTOMS (N.T.) dated 17.11.99 (G.S.R. 777(E), dated the 17th November, 1999.

- (i)
- (ii)
- (iii) etc.

Signature of the authorised Representative
of appellant or applicant, if any

Signature of the appellant or applicant

Note : The appeal or application including the statements of facts and the grounds of appeal or application shall be filed in quadruplicate accompanied by an equal number of copies of the decision or order (one at least of which shall be a certified copy) of the Commissioner of Customs/ Appeals and a copy of the order of the Committee of Commissioners of Customs under sub-section (2) of section 129A or a

copy of the order of the Committee of Chief Commissioners of Customs under sub-section (1) of section 129D.

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